

25SMCV02099 25SMCV02099

County: los-angeles

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ORDER

DEPARTMENT

207

HEARING DATE

September

17, 2026

CASE NUMBER

25SMCV02099

Appointment

of Discovery Referee per Code of Civil Procedure section – On Court's Motion

PLAINTIFF

Lincolnway

Partners, LLC

DEFENDANTS

Tishman

Speyers Properties, Inc.; 1430 Lincoln Blvd., LLC & MW Doe Street
Corp.

Per Code of Civil Procedure

section 639, “[w]hen the parties do not consent, the court may, upon the written motion of any party, or of its own motion, appoint a referee in the following cases pursuant to the provisions of subdivision (b) of Section 640: . . .

[w]hen the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

(Code Civ. Proc., § 639, subd. (a); see also Cal. Rules of Court, rules 3.922, et seq.)

Here,

the Court finds that the appointment of a discovery referee for all discovery purposes, whose fees may be shared equally between the parties or as determined/recommended by the discovery referee, to be necessary^[1] as the parties’ ongoing discovery disputes make the action more complicated and time consuming in comparison to other similar actions pending before the Court.

To illustrate, the Court conducted an Informal Discovery Conference on August 13, 2026. At the conference, the Court admonished the parties to adhere to the Discovery Act and cooperate to ensure all parties have fair access to material information.

Despite the admonishment, Plaintiff

Lincolnway Partners, LLC (“Plaintiff”) has filed and scheduled four discovery motions regarding 3 separate sets of Requests for Production of Documents served on Defendants Tishman Speyers Properties, Inc., 1430 Lincoln Blvd., LLC and MW Doe Street Corp. (collectively, “Defendants”) and 1 set of Form Interrogatories served on all Defendants.

In summary, Plaintiff is seeking rulings regarding 174 document requests, compelling the review of hundreds of pages of papers filed as moving, opposition and reply papers by the parties, including voluminous initial and reply separate statements, and requiring the examination of hundreds of pages of documents purportedly produced by Defendants to determine whether Defendants have fulfilled their obligations under the Discovery Act. And in relation to the document requests which span over three separate motions, Plaintiff is seeking \$14,630 in monetary sanctions against Defendants. The Court estimates that consideration of those discovery motions will consume hours of

Court time per motion.[2]

Further, at the Informal

Discovery Conference, counsel for Plaintiff represented that Defendants' further responses to the Form Interrogatories were satisfactory, but Plaintiff would still seek \$10,450.00 in monetary sanctions against Defendants. Although the parties have resolved the underlying discovery dispute, the Court will still be burdened with reviewing the entirety of the papers filed in conjunction with the motion (moving, opposition and reply) to determine whether the monetary sanctions is warranted under the circumstances. That endeavor alone will consume hours of Court time.

"It is a central precept to

the Civil Discovery Act of 1986 that civil discovery be essentially self-executing. A self-executing discovery system is one that operates without judicial involvement. Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response." (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1291–1292 [cleaned up].)

Here, the parties' continued

protracted and acrimonious discovery disputes, warranting Court intervention, run afoul of the central precept of the Discovery Act, which has become non-self-executing and non-self-regulating in the context of this action. In short, despite the Court's informal intervention to assist the parties in resolving their discovery disputes, the parties have been unable to resolve their disputes, warranting intervention by the Court through the scheduling of an Informal Discovery Conference and four discovery-related motions. In short, the Court finds that the parties have been unable to curb their discovery related rancor.[3]

Therefore,

the Court sets on October 22, 2026 at 8:30 A.M. in Department 207 an Order to Show Cause why a discovery referee should not be appointed under Code of Civil Procedure section 639.

Each

party may file and serve on or

before October 15, 2026 a

memorandum of points and authorities (not to exceed 10 pages including attachments) consenting to, or opposing, the appointment of a discovery

referee.

In

addition, each party shall submit (not file) directly in Department

207 on or before October 15, 2026, the name, business contact information, fee

schedule and availability of three potential discovery referees. Should the Court appoint a discovery referee,

the Court intends to select a referee from the list of candidates proffered by

the parties.

The

Clerk of the Court shall provide notice of the Court's orders.

DATED: September 17, 2026 _____/s/_____

Michael

E. Whitaker

Judge

of the Superior Court

[1] "Notwithstanding a party's objection, subdivision (e)

of section 639 authorizes the appointment of a discovery referee when the court

"determines in its discretion" that such an appointment is "necessary." Implicit in the statutory requirement that

the reference be "necessary" is the Legislature's acknowledgment of a

litigant's right of access to the courts without the payment of a user's fee,

and the concomitant notion that there ought to be a finding of something out of

the ordinary before the services of a referee are forced upon a nonconsenting

party. There was no such finding in this case, only a bare conclusion parroting

the words of the statute. That is not enough, particularly where, as here, it

appears that any judge could resolve this discovery "dispute" in about five

minutes." (Hood v. Superior Court

(1999) 72 Cal.App.4th 446, 449 [cleaned up])

Here, the Court finds that the resolution of the parties' continuing

discovery disputes have taken, and will take, longer than five minutes to

resolve.

[2] The burden on the Court must be measured against the Court's impacted docket with over 1,100 pending cases, involving dozens of hearings per day and dozens of motions per week while at the same time presiding over both bench and jury trials. (See McDonald v. Superior Court (1994) 22 Cal.App.4th 364, 369–370 [“We recognize the Legislature, through providing for discovery disputes to be referred to paid referees, intended to reduce the extensive burden on trial courts occasioned by discovery disputes”].) At the same time, the Court acknowledges the admonishment issued by the Court of Appeal. (See Jovine v. FHP, Inc. (1998) 64 Cal.App.4th 1506, 1532 [“While we recognize the burden of the heavy caseloads carried by trial court judges, we must express a word of caution. The parties are entitled to the decision of the trial court with respect to each matter or issue presented by them except where they properly agree otherwise or a statute permits an appropriate reference. The apparently routine practice of referring out law and motion matters without obtaining the parties' prior written or record consent cannot be justified however helpful it might be in calendar management. Efficiency is not more important than preserving the constitutional integrity of the judicial process”].) Here, the Court finds that the potential appointment of a referee in this action is not for “routine” discovery disputes/motions, and the Court does not have a “routine” practice of appointing referees under Section 639.

[3] The court of appeal has held that “[t]he court should not make blanket orders directing all discovery motions to a discovery referee except in the unusual case where a majority of factors favoring reference are present. These include: (1) there are multiple issues to be resolved; (2) there are multiple motions to be heard simultaneously; (3) the present motion is only one in a continuum of many; (4) the number of documents to be reviewed (especially in issues based on assertions of privilege) make the inquiry inordinately time-consuming. In making its decision, the trial courts need consider the statutory scheme is designed only to permit reference over the parties' objections where that procedure is necessary, not merely convenient. Where one or more of the above factors unduly impact the court's time and/or limited resources, the court is clearly within its discretion to make an appropriate reference.” (Taggares v. Superior Court (1998) 62 Cal.App.4th 94, 105–106 [cleaned up].) Here, the Court finds that all four factors outlined by the Court of Appeal are present in this action, warranting a discovery referee appointment.